

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 892

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO BOARDS OF COUNTY COMMISSIONERS; AMENDING SECTION 59-906A, IDAHO CODE, TO REVISE PROVISIONS REGARDING HOW VACANCIES ARE FILLED FOR A BOARD OF COUNTY COMMISSIONERS AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 59-906A, Idaho Code, be, and the same is hereby amended to read as follows:

59-906A. BOARD OF COUNTY COMMISSIONERS -- VACANCIES -- HOW FILLED. In the event of a vacancy on a board of county commissioners, such vacancy shall be filled ~~as herein provided~~ pursuant to the provisions of this section. The county central committee of the same political party, if any, of the former member whose seat is vacant shall submit, within fifteen (15) days, a list of ~~three (3)~~ nominations to the governor. For counties with a population of less than fifty thousand (50,000), the county central committee shall submit to the governor a list of one (1) nominee. For counties with a population greater than fifty thousand (50,000) but less than one hundred thousand (100,000), the county central committee shall submit to the governor a list of two (2) nominees. For counties with a population greater than one hundred thousand (100,000), the county central committee shall submit to the governor a list of three (3) nominees. The governor shall fill the vacancy by appointment from the list of ~~three (3)~~ nominations within fifteen (15) days. If no appointment has been made within fifteen (15) days, the county central committee shall designate one (1) of the ~~three (3)~~ nominees to fill the vacancy. The vacancy shall be so filled until the expiration of the term in which the vacancy occurs. The county central committee of the same political party, if any, of the former member, shall select a person who possesses the constitutional qualifications to fill the vacant office to which ~~he the~~ person is nominated, and who is affiliated with the same political party, if any, as the former member whose seat is vacant. Upon failure of the committee to make such selection before the expiration of the fifteen (15) day period, the governor shall, within five (5) days, fill said vacancy by appointing a person having the qualifications ~~above~~ set forth in the provisions of this section.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.